

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ODALIS IMBERT,

Plaintiff,

-against-

**POLICE OFFICER ROBERT ERBETTA;
POLICE OFFICER DANIEL WYNNE; SGT.
JOHN BONHOMME; POLICE OFFICER
JOSEPH DURENBERGER; DETECTIVE
JUSTIN VARTANIAN; POLICE OFFICER
JIANG; POLICE OFFICER FERGUSON;
PAROLE OFFICER HICIANO-GOMEZ;
PAROLE OFFICER J. KENNEDY;
OFFICER DOES #1-5,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
September 16, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603

New York, New York 10279

Phone: (212) 300-6506

Fax: (888) 390-5401

Attorney for Plaintiff

TO:

POLICE OFFICER ROBERT ERBETTA

POLICE OFFICER DANIEL WYNNE

SGT. JOHN BONHOMME

POLICE OFFICER JOSEPH DURENBERGER

DETECTIVE JUSTIN VARTANIAN

POLICE OFFICER JIANG

POLICE OFFICER FERGUSON

OFFICER DOES #1-5

1 Police Plaza

New York, New York 10007

PAROLE OFFICER HICIANO-GOMEZ

PAROLE OFFICER J. KENNEDY

314 W 40th Street

New York, NY 10018

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****ODALIS IMBERT,**

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT**POLICE OFFICER ROBERT ERBETTA;
POLICE OFFICER DANIEL WYNNE;
SGT. JOHN BONHOMME; POLICE
OFFICER JOSEPH DURENBERGER;
DETECTIVE JUSTIN VARTANIAN;
POLICE OFFICER JIANG; POLICE
OFFICER FERGUSON; PAROLE
OFFICER HICIANO-GOMEZ; PAROLE
OFFICER J. KENNEDY; OFFICER DOES
#1-5,**

Defendants.

Plaintiff ODALIS IMBERT, by his attorneys, Rickner PLLC, complaining of the
Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against members of the New York City Police Department ("NYPD") and The New York State Division of Parole, who violated Plaintiff's rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 for violations of Plaintiffs rights under the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff currently resides in the County of the Bronx.

7. Defendant Police Officer Robert Erbetta (Shield No. 11149, Tax ID No. 963502) (hereinafter "Erbetta") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

8. Officer Erbetta is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

9. Officer Erbetta is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

10. Defendant Police Officer Daniel Wynne (Shield No. 23610, Tax ID No. 962083) (hereinafter "Wynne") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

11. Officer Wynne is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

12. Officer Wynne is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

13. Defendant Sgt. John Bonhomme (Shield No. 03201, Tax ID No. 954559) (hereinafter “Bonhomme”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

14. Sgt. Bonhomme is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

15. Sgt. Bonhomme is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

16. Defendant Police Officer Joseph Duernberger (Shield No. 18593, Tax ID No. 958529) (hereinafter “Duernberger”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

17. Officer Duernberger is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

18. Officer Duernberger is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

19. Defendant Det. Justin Vartanian (Shield No. 03467, Tax ID No. 955622) (hereinafter “Vartanian”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

20. Det. Vartanian is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

21. Det. Vartanian is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

22. Defendant Police Officer Samuel Byun (Shield No. 07129, Tax ID No. unknown) (hereinafter “Byun”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

23. Officer Byun is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

24. Officer Byun is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

25. Defendant Police Officer Jiang (first name unknown) (Shield No. unknown, Tax ID No. 963582) (hereinafter “Jiang”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

26. Officer Jiang is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

27. Officer Jiang is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

28. Defendant Police Officer Ferguson (first name unknown) (Shield No. unknown, Tax ID No. unknown) (hereinafter “Ferguson”) was at all relevant times described herein an NYPD officer, employed by the City of New York, and partnered with Defendant Erbetta on the incident date. At all relevant times described herein, Ferguson was acting under color of New York state law. He is sued in his individual capacity.

29. Officer Ferguson is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

30. Officer Ferguson is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

31. Defendant Officer Does Nos. 1–5 (hereinafter “Does 1–5”) were at all relevant times described herein NYPD officers employed by the City of New York. At all relevant times described herein they were acting under color of New York state law. Does 1–5 are sued in their individual capacities.

32. The true names and shield numbers of Does 1–5 are not currently known to Plaintiff. However, each Doe is an employee or agent of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers are known; and (b) that the Law Department should immediately begin preparing their defense in this action.

33. Collectively, Erbetta, Wynne, Bonhomme, Duernberger, Vartanian, Byun, Jiang, Ferguson, and Does 1–5 are referred to as the “NYPD Defendants.”

34. At all times relevant herein, the NYPD Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as

officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

35. Parole Officer Hiciano-Gomez (first name unknown) was at all relevant times described herein a Parole Officer, employed by the New York State Department of Correction and Community Supervision. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

36. Parole Officer J. Kennedy (first name unknown) was at all relevant times described herein a Parole Officer and or/ Supervisor, employed by the New York State Department of Correction and Community Supervision. At all relevant times described herein he was acting under color of New York state law. He is sued in his individual capacity.

37. Collectively, Hiciano-Gomez and Kennedy are referred to as the “DOCCS Defendants.”

38. At all times relevant herein, the DOCCS Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of DOCCS, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of DOCCS at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the State of New York and incidental to the lawful pursuit of their duties as officers, employees, and agents of the State of New York.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

39. On September 18, 2018, Plaintiff was lawfully in and around his residence at the time, 549 West 187th Street, New York, New York 10033.

40. Plaintiff was locked out of his home and proceeded to crawl through a window to reenter the residence.

41. A neighbor who observed Plaintiff called 911 and reported a break in.

42. When police arrived, the neighbor pointed the officers to Plaintiff's home, claiming that a man crawled through a window into a home where a female was present.

43. When officers first pulled up outside the home, Plaintiff—who was now sitting on the outdoor steps of his residence inside a locked gate—went inside the home, as he was on parole and had been instructed by his parole officer to avoid police contact.

44. The responding officers, observing Plaintiff enter his home, immediately broke down locked gate and the exterior door to the apartment.

45. Plaintiff's girlfriend, who lived at the residence, opened the interior door and asked the police what was going on.

46. Despite the woman telling police that she was Plaintiff's girlfriend and that Plaintiff lived at the address with her, the NYPD Defendants ordered her out of her home and forced themselves past her and into the residence, drew their weapons, and ordered Plaintiff to get onto his knees and put his hands up.

47. While Plaintiff was on his knees, The NYPD Defendants deployed tasers, which penetrated Plaintiff's skin, and proceeded to assault and batter him, employing excessive force, including the use of batons, tasers, stun guns, punches, kicks, and chokeholds.

48. Plaintiff was then arrested and transported to the hospital, and then the precinct.

49. Plaintiff was subsequently violated by his Parole Officer, Hiciano-Gomez, which included a violation for residing at the address in which Plaintiff was living.

50. But Plaintiff had already received verification from the Division of Parole that he could live at the address, and the DOCCS Defendants knew this.

51. As a result of this brutal arrest and subsequent malicious prosecutions—during which time the NYPD Defendants fabricated official documents and forwarded this false information to the prosecutor and the DOCCS Division of Parole—Plaintiff was incarcerated for approximately six months before the criminal charges against him were dismissed in their entirety.

52. Plaintiff was also successful in fighting the alleged parole violation(s), but was forced to endure both the criminal and parole prosecutions simultaneously due to the unlawful acts of both the DOCCS and NYPD Defendants.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

53. Many of the officers who used excessive force on Plaintiff have histories of violating the civil rights of members of the public.

54. For example, just a few months after his attack on Plaintiff, Erbetta was determined to have used offensive language toward a civilian with physical disabilities, who the officer also forcibly removed to a hospital. Erbetta was also accused of wrongfully frisking the same civilian.

55. Vartanian was found to have wrongfully used his radio as a club in an attack on a civilian, resulting in "Command Discipline B" from the NYPD.

56. Bonhomme has had at least three civilian complaints made against him, including allegations of using excessive physical force and unlawful strip searches.

57. Byun was accused of wrongfully refusing to provide his name and information to a civilian who requested it.

58. While these disciplinary histories are incomplete, they demonstrate a pattern of misbehavior and unlawful acts by the officers who assaulted and arrested Plaintiff.

THE INJURIES TO PLAINTIFF

59. This action seeks damages on behalf of Plaintiff for the extraordinary pain and suffering that Plaintiff was forced to endure as a consequence Defendants' wrongful actions.

60. These damages include severe physical and emotional injuries; pain and suffering; loss of liberty; loss of enjoyment of life; and violations of his Fourth, Fifth, and Fourteenth Amendment rights.

61. Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such Defendants are liable for punitive damages.

FIRST CLAIM FOR RELIEF: EXCESSIVE FORCE UNDER 42 U.S.C. § 1983 AGAINST THE NYPD DEFENDANTS

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

63. The NYPD Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to Plaintiff.

64. This unwanted physical contact was unlawful and unconstitutional.

65. That by virtue of the aforementioned acts by the NYPD Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the NYPD Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

66. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

67. As a result of the above unconstitutional conduct, the NYPD Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE NYPD DEFENDANTS**

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

69. The NYPD Defendants provided false evidence and statements to the Division of Parole, prosecution, defense counsel, and court(s).

70. That by virtue of the aforementioned acts by the NYPD Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to be free from prosecution based on false statements, and the NYPD Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

71. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

72. As a result of the above unconstitutional conduct, the NYPD Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST ALL DEFENDANTS**

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

74. Defendants initiated both criminal and parole prosecutions against Plaintiff without probable cause, both of which resolved in complete dismissals in favor of Plaintiff.

75. That by virtue of the aforementioned acts by Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth and Fourteenth Amendments to be free from unreasonable or unlawful searches and seizures, and Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

76. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

77. As a result of the above unconstitutional conduct, Defendants are liable for punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 16, 2021

Rickner PLLC

By:


Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff .
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
September 16, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1604
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
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